

U.S. GENERAL SERVICES ADMINISTRATION  
PUBLIC BUILDINGS SERVICE

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

**1. Identification and description of action being approved:**

This class justification for other than full and open competition (FAR Subpart 6.3) is for use by General Services Administration (GSA) contracting activities in the acquisition of support and administrative workspace for the Transportation Security Administration (TSA) where required to be on airport property. TSA security checkpoint screening areas and requirements that are not required to be on airport property are not covered by this justification. The TSA was created by Public Law 107-71 and is responsible for the day-to-day Federal civil aviation security, screening operations for passenger air transportation, and intrastate air transportation. TSA requires space at every airport in the United States of America and its possessions and territories having scheduled commercial airline service.

**2. Description of services and/or supplies required:**

This justification applies to all TSA continuing need requirements for support and administrative workspace (such as office, break, training, and storage space) that are required to be on airport property. There are currently 441 locations under lease. On average, each location is approximately 3,000 square feet.

**3. Identification of Statutory Authority:**

An agency may use procedures other than competitive procedures when the property or services needed are available from only one responsible source and no other type of property or service will satisfy the needs of the agency, 41 U.S.C. 253 (c)(1).

**4. Demonstration that the acquisition requires use of the authority cited:**

FAR 6.302-1, which implements the referenced statutory authority, authorizes limited competition when the property or services needed are available from only one responsible source and no other type of property or service will satisfy the needs of the agency.

The Aviation and Transportation Security Act (ATSA) was signed into law on November 19, 2001. TSA employs more than 45,000 security screeners and provides guidance and training to flight crews for dealing with threats on board aircraft. Since February 17, 2002, TSA has been responsible for all civil aviation security functions. Because these tasks are directly related to the security of the national air transportation system, TSA has a critical need to be located on airport property.

**5. Description of Efforts to Solicit as Many Offers as Practicable:**

Market surveys will be conducted as the need for space arises and the notices required by FAR 5.201 and GSAM 505.202 will be published and any proposals received will be considered.

**6. Determination that the anticipated cost will be fair and reasonable:**

The cost for the space and any specific improvements shall be deemed to be fair and reasonable by each contracting officer by utilizing any market information available. Each

contracting officer must specifically determine in writing that the contract price for each lease acquired pursuant to this justification is fair and reasonable.

**7. Description of the market survey conducted:**

As the need for space arises, a market survey will be conducted to determine if space is available that meets the requirements of TSA off of the airport property, and all sources that can deliver the needed space, meeting the requirements of the agency, within the timeframe specified, will be solicited.

**8. Other facts supporting the use of other than full and open competition:**

None

**9. List of sources that expressed an interest in the acquisition:**

Not applicable.

**10. Statement of actions to overcome barriers to competition:**

None.

**11. Contracting Officer Certification:**

This class justification may be used by GSA contracting activities only when, with respect to the proposed lease contract, the contracting officer certifies as follows: "I certify that this lease contract is within the scope of the class justification for other than full and open competition for the acquisition of administrative and support work space for the Transportation Security Administration (TSA) in response to Public Law 107-71, and that the justification is accurate and complete to the best of my knowledge and belief."

This class justification for other than full and open competition is hereby made and approved in accordance with Section 303 (f) of the Federal Real Property and Administrative Services Act of 1949, as amended (41 U.S.C 253 (f) ) and FAR Subpart 6.3.

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